



File No.: EXP202407160

RESOLUTION FOR TERMINATION OF THE PROCEDURE BY RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On March 27, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against NOVATES ALIMENTACIÓN MADRID, S.L. (hereinafter, NOVATES), through the agreement transcribed below:

<<

File No.: EXP202407160

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On April 26, 2024, a complaint was filed with the Spanish Agency for Data Protection regarding a possible infringement attributable to NOVATES ALIMENTACIÓN MADRID, S.L. with NIF B87784187 (hereinafter, NOVATES or the complained party).

The facts brought to the attention of this authority are as follows:

The complainant states that they are a customer of an establishment of the complained entity located at ***ADDRESS.1 and that, after returning a product at their facilities, when they returned to the establishment for new purchases, employees informed them that the return had been processed incorrectly and that they needed to return part of the amount received. To this end, they indicated that they had a video from the establishment's surveillance system that captured the moment of the return; a video that was shown to them by a cashier via her mobile phone and which was subsequently sent to the complainant's personal phone via WhatsApp.

Along with the written complaint, a video referred to in the complaint is provided, lasting 40 seconds and originating from a surveillance camera. In this video, one of the supermarket checkouts and two customers are seen (one of whom, according to her own statement, is the complainant). At the beginning, another customer is also seen entering. At the end of the video, the voices of two people watching the video can be heard. One of them indicates that "there was the mistake."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to NOVATES, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification of the transfer of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on June 20, 2024, as stated in the acknowledgment of receipt in the file. On July 15, 2024, a response was received by this Agency.

In this response, the following is indicated:

(...) the establishment has placed sufficiently visible informational devices (posters) at all its access points that inform about the existence of the processing, the identity of the responsible party, the purpose (security), the recipients, the retention period, information regarding the possibility of exercising rights, and the means to obtain additional information. For evidentiary purposes, DOCUMENT No. 1 is attached, which includes photographs of the posters. The document contains three photographs of the access areas. Therefore, it is evidenced that the signage of the surveillance system contains the information required by data protection regulations to carry out the surveillance processing for the purpose of preserving the security of the facilities, goods, and individuals.

That the cashier of the entity showed the complainant the recording via her mobile phone so that she could observe the error in the previous return amount. Subsequently, it was the complainant who requested the employee of the company to send her the recording, authorizing the employee to send the images to her personal phone via the WhatsApp application. Therefore, she voluntarily provided

her personal phone number for the recording to be sent to her via WhatsApp. (...)

That this party is aware of the importance of guaranteeing and protecting public freedoms and the fundamental rights of individuals, as well as complying with data protection regulations in order to ensure the security of information and respect for the rights and freedoms of individuals. With this purpose, the entity has contracted, among other compliance services, the data protection consultancy service with the company ***COMPANY.1, and has adapted its organizational structure to regulatory requirements and implemented various policies and protocols regarding data protection, with the aim of ensuring adequate protection concerning the personal data of individuals with whom the institution interacts. In summary, it can be guaranteed by this party that the entity has various appropriate technical and organizational measures to ensure a level of

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeapd.gob.es

3/16

adequate security and safeguard the confidentiality, integrity, and availability of the personal data for which they are responsible for processing.

Along with the response to the allegations procedure, photographs are provided that appear to be three informational signs of a monitored area. The quality of the images does not allow for verification of the content of these informational devices.

THIRD: On July 18, 2024, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool, the entity NOVATES is a company established in 2017, with a business volume of 6,118,562 euros in 2023.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringement committed, a sanctioning procedure is initiated.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeapd.gob.es

4/16

III

Preliminary Issues

Article 4.1) of the GDPR defines "personal data" as: "any information relating to an identified or

identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person." Article 4.2) of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction."

Article 4.7) of the GDPR defines the "data controller" or "controller" as: "the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of such processing are determined by Union or Member State law, the controller or the specific criteria for its designation may be provided for by Union or Member State law."

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since NOVATES carries out, among other processing activities, the capture of images of natural persons, in this case, customers of its establishments, through the surveillance cameras installed therein. In this regard, an image, to the extent that it identifies a person, is considered personal data according to the definition contained in Article 4.1 of the GDPR mentioned above.

NOVATES carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

IV

Obligation Breached. Security of Processing

Firstly, and in light of the facts referred to in the complaint that gives rise to this initiation agreement for sanctioning procedure, we must recall the provisions of Article 22 of the LOPDGDD - Processing for the purposes of video surveillance.

1. Natural or legal persons, public or private, may carry out the processing of images through systems of cameras or video cameras with the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeae@epd.gob.es

5/16

Purpose of preserving the safety of individuals and property, as well as their facilities.

Without prejudice to the above, Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying likelihood and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
 - b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
 - c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
 - d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.
2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.
3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification

mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law."

On the other hand, Recital (74) of the GDPR indicates that: "The responsibility of the controller for any processing of personal data carried out by themselves or on their behalf must be established. In particular, the controller must be obliged to implement appropriate and effective measures and must be able to demonstrate compliance of processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing, as well as the risk to the rights and freedoms of natural persons. Therefore, the GDPR requires controllers to adopt the corresponding necessary technical and organizational security measures to ensure that processing is compliant with current regulations, as well as that any person acting under the authority of the controller or the processor and having access to personal data...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeae@aepd.gob.es

6/16

access to personal data can only be processed following the instructions of the data controller. The reference of this provision to the guarantee of security of processing implies that such technical and organizational measures must not only be adopted but also implemented and ensured for compliance. It is necessary to point out that the aforementioned provision does not establish a list of specific security measures according to the data being processed, but rather establishes the obligation for the data controller and the processor to apply technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, as well as the likelihood and severity of risks to the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, which must be determined considering pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification processes (not audits), evaluation, and assessment of the effectiveness of the measures.

In any case, when assessing the adequacy of the level of security, particular attention must be paid to the risks presented by the data processing, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

The facts that are the subject of the complaint show indications that the images obtained by the surveillance cameras installed in the establishment of the responding party—specifically, the camera focusing on the register where the events subject to the complaint occurred—were accessible to at least two individuals who commented on the viewed images. According to the complainant, these images led to a request for the return of a certain amount, due to an allegedly improperly executed return that occurred prior and was recorded by the camera in question.

The video in which the events are visualized was provided by the complainant because, as she claims and has been confirmed by the responding party in its written response to the transfer proceedings, it was sent to her by a person responsible for the establishment. As a relevant indication of this fact, it should be noted that the provided video is not the image directly taken by the security camera, but rather a video that may have been captured by a mobile device and reproduces the images captured by the camera. In this regard, initial movements are perceptible in the provided video—indicative of a certain lack of stability in the device that was capturing the images—as well as the identification of the complainant through a cursor that was positioned over her image and that could have been used from the original viewing of the images on the corresponding monitor.

Therefore, it can be stated that i) the recordings from at least this specific security camera were accessible to employees of the responding party.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeapd.gob.es

7/16

whose connection to the surveillance activities is unknown and has not been accredited ii) this access allowed the images to be captured by a second device, iii) this capture allowed the video with the specific images of the events that occurred concerning the claimant to be sent to her via a mobile messaging service - WhatsApp -.

It should also be noted that the video contained images not only of the claimant but also of two other clients: the client who was ahead of the claimant in the payment queue, who remains throughout the recording, and a client who enters the establishment at the beginning of the recording.

The described facts seem to indicate that the processing of personal data of the clients of the defendant - and, more specifically, those of the claimant - lacked the technical and organizational security measures prescribed by the GDPR. Such measures should have been aimed, in the specific case at hand, at preventing unauthorized access to the images captured by the video surveillance system, as well as a subsequent dissemination of the accessed images - dissemination that also lacked any security measures as it was sent via a mobile phone -.

Therefore, in accordance with the indications available at this moment regarding the initiation of sanctioning proceedings, it is considered that the known facts could constitute an infringement, attributable to NOVATES, for violation of Article 32 of the GDPR.

V

Classification of the infringement of Article 32 of the GDPR and qualification for the purposes of prescription

Article 83.4 of the GDPR classifies as an administrative infringement the violation of the following article, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Infringements are constituted by the acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law."

For the sole purposes of the prescription period, Article 73 of the LOPDGDD establishes the following:

"According to what is established in Article 83.4 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered serious and will prescribe in two years, particularly the following:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679."

VI

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and detriment they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular, whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sede@aepd.gob.es

9/16

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In the present case, considering the severity of the possible infringement, particularly with regard to the consequences that its commission entails, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the turnover of NOVATES is considered, amounting to 6,118,562 euros in the year 2023.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to the outcome of the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following circumstances:

- Intentionality/Negligence in the infringement (Article 83.2.b) of the GDPR): in the case at hand, the

facts seem to evidence a clear lack of diligence in ensuring the security in the processing of personal data of its clients and, specifically, of their images. It should also be noted that this lack of security measures was consciously used by the responding party to request the claimant to return an amount allegedly misperceived. This request for return was supported by the images subject to processing, and whose authorized access has not been substantiated, and to reinforce the argument of this request for return, they were sent using a mobile device to the claimant.

Furthermore, the following aggravating factors are also considered for the purpose of graduation:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeapd.gob.es

10/16

- Degree of responsibility of the data controller, taking into account the technical or organizational measures they have implemented under Articles 25 and 32 of the GDPR (Article 83.2, letter d), of the GDPR): we must remember that the respondent is responsible for ensuring the security not only of the facilities but also of the clients who visit them. This security guarantee must also encompass the processing of their personal data.

- The link between the infringer's activity and the processing of personal data (Article 76.2, letter b), of the LOPDGDD): the case at hand refers to the lack of security measures in the processing of personal data through the video surveillance system for which the respondent is responsible. This specific processing activity has an evident link to the processing of a large number of personal data by the respondent.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 32 of the GDPR, allows for an initial administrative fine of 20,000.00 euros to be set.

VII

Corrective Measures

If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 32 of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”

Thus, the responsible entity may be required to adjust its actions to the personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the presumed infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeapd.gob.es

11/16

However, in this case, regardless of the above, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, the resolution adopted may require NOVATES for it to, within ONE MONTH from the date of effectiveness of the resolution concluding this procedure:

- Adopt and ensure the application of technical and organizational measures aimed at ensuring the security of the personal data for which it is responsible and, more specifically, of the images captured by the video surveillance systems installed in its establishments.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of this sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

It is also reminded that neither the acknowledgment of the infringement committed nor, where applicable, the voluntary payment of the proposed amounts, exempts the obligation to adopt the necessary measures to cease the conduct or to correct the effects of the infringement committed and to demonstrate to this AEPD compliance with that obligation.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against NOVATES ALIMENTACIÓN MADRID, S.L., with NIF B87784187, for the presumed infringement of Article 32 of the GDPR, classified in Article 83.4 of the GDPR.

SECOND: TO APPOINT A.A.A. as instructor and B.B.B. as secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Sub-Directorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeapd.gob.es

12/16

The corresponding sanction would be an administrative fine of 20,000.00 euros, without prejudice to what results from the instruction.

FIFTH: NOTIFY this agreement to NOVATES ALIMENTACIÓN MADRID, S.L., with NIF B87784187, granting a hearing period of ten working days for it to formulate allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number that appears in the heading of this document.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be established at 16,000.00 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be established at 16,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be established at 12,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (16,000.00 euros or 12,000.00 euros), it must do so by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is adhering.

Likewise, it must send the proof of payment to the General Subdirectorate of Inspection along with the communication of the withdrawal or renunciation of any action or appeal in the administrative route against the sanction to continue with the procedure in accordance with the amount deposited.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal is available against this act.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeae@aepd.gob.es

13/16

1479-200325

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

>>

SECOND: On April 11, 2025, NOVATES proceeded to pay the sanction in the amount of 12,000.00 euros making use of the two reductions provided for in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

THIRD: The initiation agreement transcribed above indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

14/16

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would imply two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at 12,000.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

After the notification of the aforementioned initiation agreement, NOVATES has proceeded to acknowledge responsibility and make voluntary payment of the sanction, availing itself of the two reductions provided. In accordance with section 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any others arising from it.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeaeapd.gob.es

15/16

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES: FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution. The sum of the aforementioned amounts yields a total amount of 20,000.00 euros.

After NOVATES ALIMENTACIÓN MADRID, S.L. has proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the aforementioned total is applied, which results in a final amount of 12,000.00 euros.

The effectiveness of the aforementioned reductions is, in any case, conditioned upon the withdrawal or renunciation of any action or administrative appeal.

SECOND: TO DECLARE the termination of procedure EXP202407160, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER NOVATES ALIMENTACIÓN MADRID, S.L. to notify the Agency of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution within 1 month from the date this resolution becomes final and enforceable.

FOURTH: TO NOTIFY this resolution to NOVATES ALIMENTACIÓN MADRID, S.L.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility to the withdrawal or renunciation of any action or administrative appeal, this resolution will be final in the administrative route and fully enforceable from its notification.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeaepd.gob.es

16/16

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeaepd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

1259-260325

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeaepd.gob.es